



GOVERNANCE

COMPARISON OF CONSTITUTION

MODULE - 22

BRITISH CONSTITUTION

INTRODUCTION

- 1 The Constitution of present United Kingdom has evolved from the past which contained smaller states and has been continuing till the present.
- 2 The defining feature of the British Constitution is its **unwritten form**.
- 3 Absence of a Constitution does not mean Britain does not have one, it does but it is unwritten and other elements, such as statutes, judicial precedents, conventions, treaties, etc., collectively form together the essence of constitution.
- 4 Hence it is termed as **uncodified Constitution** rather than unwritten constitution.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

a PARTIALLY WRITTEN AND PARTIALLY UNWRITTEN CONSTITUTION

- 1 The British Constitution is mostly in unwritten form. The written form consists of important parts like the Magna Carta, Bill of Rights, etc., but the unwritten form is more remarkable and noticeable.
- 2 What unwritten here means is that unwritten part of the Constitution is larger than the written part, the written part of the Constitution was not created at a single instance, whenever statutes, laws were enacted it was not for improving the constitution, they indirectly helped in identifying the values of the constitution.
- 3 Thus, the British Constitution is largely based on traditions and conventions of the English Society.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

b PARLIAMENTARY SOVEREIGNTY

- 1 Legally, the British Parliament can do anything, save just make man a woman or woman a man.
- 2 There is no law which the parliament can make.
- 3 Everything comes under the purview of the parliament and changes can be brought by simple act.
- 4 It can abolish monarchy, abolish House of Lords, prevent someone from attaining the throne and deprive all powers of the crown and many more.
- 5 The important aspect is that no court can question the legality of such acts.
- 6 Acts, laws cannot be struck down like in India or America for being ultra vires of the constitution.
- 7 The British Parliament is both the law making and the constituent authority, and there is no legal difference between them.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

c UNITARY CONSTITUTION

1 In India and America are some of the powers are vested with the regional Governments, and it is shared between the Centre and the States.

2 But, Britain is not a federation or union of States and it has a unified Constitution

3 Powers thus, are completely appropriated by the government with its head at London.

4 Though local governments exists, they derive power from the union, which can give greater or deprive of the present powers of the local governments. Thus, British Constitution is unitary in essence and practice.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

d FLEXIBLE CONSTITUTION

- 1 There is no separate procedure for amendment of constitutional provisions, it is passed like any other bill requiring simple majority.
- 2 Constitutional law is thus treated like any other law, making it flexible.
- 3 Thus British Constitution can adapt itself to new conditions easily.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

e RULE OF LAW

1 Though it is not explicitly stated, rule of law is inherently present in the British Constitution.

2 We may see that British Constitution does not contain defined provisions for protection of its citizens unlike in America or India, but the British citizens are well protected and their rights are derived from the presence of Rule of Law.

3 All institutions the King, Parliament, courts, even the citizens are subject to it.

4 Tradition and public opinion upholds the ideal from any infringement by the parliament.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

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SEPARATION OF POWERS COMBINED WITH CONCENTRATION OF RESPONSIBILITY

1 There is strict separation of power between the executive, legislature and the judiciary.

2 Each institution performs its function separately without encroaching on another.

3 But the cabinet in England has come to play very prominent role.

4 It controls the agenda of the parliament and to an extent even influences the judiciary, thus cabinet is called as the steering wheel, which steers the ship called the government.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

g BLEND OF MONARCHY, ARISTOCRACY AND DEMOCRACY

1 The British Constitution is a balance between monarchy, aristocracy and democracy.

2 The Crown-King represents the monarchy, the House of Lords (the Upper House) represents the aristocracy and the House of Commons represents the Lower House giving representation to the common man, thus upholding the ideals of democracy.

3 Though the powers of Monarch and Aristocrats have been drastically reduced they have not been scrapped.

4 These institutions serve as remnants of the bygone era serving little purpose in the present.



SALIENT FEATURES OF THE BRITISH CONSTITUTION

h BICAMERAL LEGISLATURE

- 1 British has a bicameral parliament. The House of Lords having hereditary membership is the Upper House and the House of Commons is the Lower House.
- 2 House of Commons is more powerful than the Upper House. It is elected by people having universal adult franchise.



INTRODUCTION

- 1 Philadelphia Convention held in 1787 forms the basis for the American Constitution.
- 2 It came into force in 1789 after ratification of required number of states.
- 3 It is one of the briefest Constitution in the world consisting of originally seven articles.
- 4 Around 26 amendments have been carried out exposing the rigid character of the constitution.
- 5 The concept of Montesquieu's separation of power has found ideal application in the American system, all the institutions are separate and it has checks and balances to prevent overreach.
- 6 Though constitutionally the federal government is weak, judicial interpretation by the Supreme Court has strengthened its position.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

The following are the salient features of the American Constitution:

a WRITTEN FORM

- 1 Like any other federal constitution, it is in written character.
- 2 It is simple and elegant consisting of only seven articles.
- 3 It was created as a skeleton Constitution where the framers created just the important broad outlines where rest of the details will be filled by the acts of the Congress.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

a WRITTEN FORM

4 Thus, Constitution is just the starting point. Other than the written character, there are elements like conventions, customs, legislative measures and judicial decisions which form the unwritten part forming a vital part of the constitutional provisions.

5 Though election of President as per the Constitution is indirect in character, present convention is that it is a direct contest between the individuals.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

b RIGIDITY

1 It is the most rigid Constitution in the world. Though amendment is possible, it is very lengthy and cumbersome, and it requires ratification of three-fourth of the states. Hence any proposed amendment takes years before it is implemented.

2 The rigidity can be seen from the fact that only 27 amendments have been carried out in all these years of existence of the constitution.

3 Though it seems rigid, the Constitution has adapted well to changing circumstances, from the Industrial Revolution to the present technological revolution.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

c FEDERAL NATURE

1 Originally it was a federation of 13 states, which is now expanded into 50 states.

2 There is constitutional division of powers between union and the states.

3 The Constitution has elaborated the powers of the Centre and has left all the powers to the residual powers to the States.

4 Thus, Constitution has created a weak centre and strong federal states.

5 But, in practice, this is not followed, the powers of centre has increased manifold due to the concept of implied powers as propounded by the Supreme Court of America.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

d SUPREMACY OF THE CONSTITUTION

- 1 The Constitution is supreme law of the land.
- 2 Neither the centre nor the states can override the constitution.
- 3 Any law passed by state or centre can be declared ultra vires of the Constitution if it is in violation by the Supreme Court.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

e SEPARATION OF POWERS

1 Though there is no direct statement in Constitution regarding separation of powers the concept is implied and seen from the fact that the constitutional makers have attempted to keep separate executive, legislature and judiciary as much as possible.

2 The President is the head of the executive, he is indirectly elected and he has nothing to do with the Congress.

3 The Congress is thus only the legislative body.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

e SEPARATION OF POWERS

- 4 President is not responsible to the Congress and thus cannot be removed by vote of no-confidence. He also does not participate in its debates.
- 5 Both the organs are independent of each other.
- 6 Supreme Court enjoys enormous freedom and independence of function.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

e SEPARATION OF POWERS

7 In actual practice, there is no complete separation of powers between the institutions.

8 Today the President controls the legislative policy of the Congress.

9 There is coordination between the executive and the legislature.

10 Thus in practice, there is overlap and sharing of powers between different institutions.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

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CHECKS AND BALANCES

1 Power of each institution is checked by another, and thus balance of power is maintained.

2 President can veto the bills of the Congress.

3 International treaty needs approval from the senate

4 Internal appointments too need ratification from the senate, thus senate checks the power of the President.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

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CHECKS AND BALANCES

5 Organization of judiciary is determined by the Congress, and the President has the power to appoint the judges of the Supreme Court, subject to the approval by the senate.

6 The Supreme Court has powers to strike down bills of both centre and states if it is in violation of the Constitutional provisions.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

g BILL OF RIGHTS

- 1 The basic fundamental rights of life, property and liberty was not incorporated into the original constitution.
- 2 By subsequent first 10 amendments, these rights got approval and made as part of the constitution.
- 3 The citizens can take a recourse to courts if their fundamental rights are violated.
- 4 These rights can only be modified or suspended by another constitutional amendment
- 5 Thus citizens of America enjoy freedom of speech, habeas corpus, freedom of worship, freedom from unreasonable seizure etc as they have been made as fundamental feature of the Constitution.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

h JUDICIAL REVIEW

- 1** The judicial review is sometimes called as the judicial veto as this keeps in check the powers of the legislature and the executive.
- 2** The courts thus act as custodian and guardian of the constitutional rights, any bill which violates it will be struck down.
- 3** Judiciary has also expanded the power of the Centre with its doctrine of 'implied powers', hence Constitution is what judiciary interprets.
- 4** The judiciary interprets the Constitution according to the changing circumstances of the society.
- 5** This has made the Constitution relevant to any period in the time scale.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

i REPUBLICAN FORM OF GOVERNMENT

- 1 Unlike monarchical form followed in the United Kingdom, the United States has adopted a republican form.
- 2 The head of the state, the President is elected.
- 3 The people drive the Constitution. The Constitution makes it binding to adopt republican form of government.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

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PRESIDENTIAL GOVERNMENT

- 1 President is head of the state and government. He is vested with all the executive powers.
- 2 Unlike parliamentary form followed in the United Kingdom and India, the President is not responsible to the Congress.
- 3 He does not attend any session, nor directly introduce any legislation nor participates in the debates.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

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PRESIDENTIAL GOVERNMENT

- 4 The Congress too cannot remove the President by no-confidence motion.
- 5 He enjoys problem free 4-year tenure. Also, the President cannot dissolve the congress.
- 6 The cabinet of the President consists of members of his own selection, and they need not be from the Congress.



SALIENT FEATURES OF THE AMERICAN CONSTITUTION

k DUAL CITIZENSHIP

- The Constitution provides for dual citizenship.
- The individual is thus citizen of both the state and the country.



I POPULAR SOVEREIGNTY

- The people are the ultimate sovereign.
- The preamble of the constitution establishes this idea.
- Rest of the Government and its institutions are subjected to sovereignty of the people.



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